

This matter was previously continued to September 3, 2026.

14. 9:00 AM CASE NUMBER: N25-2495

CASE NAME: CLAIM OF:PARIS WEBSTER, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Upon review of the submission, the Court will approve the Compromise. The Court will sign the lodged orders.

15. 9:00 AM CASE NUMBER: N26-1036

CASE NAME: PETITION OF:LION FUEL EXPRESS LLC

HEARING IN RE: PETITION FOR MECHANICS LIEN

FILED BY:

TENTATIVE RULING:

Lion Fuel Express seeks to cancel a mechanic's lien. The lien was recorded March 12, 2026. Civil Code § 8460 requires action to enforce within 90 days. There has been no extension of credit or action to enforce, and more than 90 days have passed. Petitioner gave notice to the lienholder and received a response that the lienholder would respond, but also that the lien was being released. There appears to be no opposition. The Petition is Granted.

Law & Motion

Add On

16. 9:00 AM CASE NUMBER: C25-02266

CASE NAME: ASCEND REHAB SERVICES INC. VS. SINDHU JEFFERSON

***PRELIMINARY INJUNCTION**

FILED BY:

TENTATIVE RULING:

The Court is disappointed that the joint statement reveals no process. This is not a complex dispute. The Court's prior order was clear. Ascend needed to concretely identify any documents that it believed were confidential and accessed or utilized. If Ascend believed that could be done by telephone, it also needed to recognize that the meet and confer process would need to occur over at least two meetings, as Jefferson would need to have a chance to investigate those allegations.

Ascend still has not presented any evidence that documents accessed before Defendant Jefferson left her employment were used for any unlawful or improper purposes. The Court reminds Ascend that it cannot prevent employees from using their learned work experience to compete against it. It cannot impose restrictions on an employee's "ability to practice their profession." (*Edwards v. Arthur Andersen LLP* (2008) 44 Cal.4th 937, 947-948; *AMN Healthcare, Inc. v. Aya Healthcare Services, Inc.* (2018) 28 Cal.App.5th 923, 936; *see also* Bus. & Prof. § 16600.) The question is whether Defendant Jefferson competed with Ascend while employed or whether she used any proprietary secrets to compete with Ascend. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 719 (restricting use of "proprietary secrets").) While Ascend may restrict the improper use of confidential, proprietary documents and also protect the privacy interests of its employees it cannot succeed on any claim that is based on Defendant Jefferson merely using information she learned throughout her employment.

But before the Court today is not the entirety of the dispute. This preliminary injunction is not addressed to the question of whether Defendant Jefferson breached any duties. Rather, the sole possible scope of this hearing is whether Defendant Jefferson is using any proprietary information at this time, and thus must be stopped.

Exhibit A appears to be the dispute, and although it is hardly more specific than what as before the court back in March, the Court will endeavor to analyze each document:

Human Resources and Employment Documents

1. Human Resources (HR) Documents - Personnel files and HR records

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. Ascend has failed to do more than identify folders and broad categories. To the extent Defendant Jefferson is familiar with rates of pay, retirement contributions, and benefits, that is not information that is generally confidential or a "proprietary secret"—it is information employees generally share with others and that is published in job listings. Ascend has provided no authority to the contrary.

2. Benefits Documents - Internal benefits documentation containing employee benefit information.

This category is subject to the same analysis as category number 1.

3. EASE Enrollment Experience - employee benefits enrollment materials and systems information.

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. There is additionally no information regarding the proprietary nature of this document.

4. Fringe Benefits Frequently Asked Questions – Internal guidance documents regarding Ascend's

employee benefits programs.

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend.

5. Ascend All Master List - A document containing the contact information for all of Ascend's past and present employees.

Defendant Jefferson has repeatedly provided sworn statements that she does not have this list and has not had it since she left her employment. There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. She has provided plausible explanations for all allegations premised on her possession of this document.

Therapy Resources and Professional Materials

1. Ascend's Entire Library of Employee Field-Therapy Resources – “This includes the complete collection of therapy materials that Ascend developed internally and/or licensed from third parties for Ascend’s confidential use.”

In addition to providing a sworn statement that she did not remove these documents from Ascend, Defendant Jefferson has sworn that her use of the same or similar documents is the result of separate purchases of generally available documents at her new employment.

2. Ascend Employee Handbook

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. Prior to her departure from Ascend she appears to have conveyed it. Ascend has not explained how its employee handbook is proprietary, central to its business, or confidential. Nevertheless, for purposes of the preliminary injunction, Defendant Jefferson does not have it.

Additional Information

1. Employee Compensation Information – alleged to have been learned through her management role

The emails that purport to demonstrate her use of employee compensation information in discussions with VerbaCare discuss “expected” salaries and a single reference to retirement contributions. There is no evidence that, while employed at Ascend, Defendant Jefferson stole the compensation charts and provided them to VerbaCare for use. Rather, she provided some comparisons and *expectations*, all the while noting that VerbaCare, as a start-up, would have its own standards. Once Defendant Jefferson left Ascend, she had no duty of loyalty and was free to use whatever information remained in her head. Ascend cannot claim with a straight face that Defendant Jefferson must clear her mind of all knowledge upon departure. The Court therefore struggles to understand how this could possibly be part of a lawful (and enforceable) preliminary injunction.

2. Contract Terms with School Districts – alleged to have been learned through her employment.

The Court has not found any relevant argument regarding how Defendant Jefferson used her knowledge about contract terms with school districts when she was employed. Again, this is part of Defendant Jefferson's experience as a provider of services and therefore not permitted to be restrained. The Court therefore struggles to understand how this could possibly be part of a lawful (and enforceable) preliminary injunction.

3. Employee contact information – alleged to have never been shared by the contacted employees

Defendant Jefferson has repeated in sworn declarations that she contacted individuals for whom she had contact information *aside* from the "Master List." Any attempt to restrict her recruitment of employees would additionally run afoul of *those* employees ability to be free from restraints on trades.

Conclusion

The Court does not understand what remains to be discussed. The Court will deny any further restraints on this tentative ruling. If Ascend wishes to clarify what it remains concerned about, it can challenge the tentative ruling.